

24STCV24039 24STCV24039

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Case Number: 24STCV24039 Hearing Date: August 26, 2026 Dept: 529

CURTIS JACKSON, ET AL. V. JENERO JEFFERSON, ET AL.

DEFENDANT

TIMOTHY ROBBINS' DEMURRER TO CURTIS JACKSON'S SECOND AMENDED COMPLAINT

Date

of Hearing: August 26, 2026 Trial Date: None

set

Department: 529 Case No.: 24STCV24039

Moving

Party: Defendant Timothy

Robbins

Responding

Party: Plaintiffs Curtis Jackson

Meet

and Confer: Yes. Sinclair Declaration.

BACKGROUND

On September 17, 2024, Plaintiffs Curtis

Jackson and Shannon Imani Jackson filed a complaint against Defendants Jenero

Jefferson, Charity Prime Realty, Mindful Growth Foundation, Nationwide Real

Estate Executives and Timothy Robbins for fraudulent misrepresentation, breach

of fiduciary duty, conversion, unjust enrichment, elder abuse quiet title,

declaratory relief and injunction.

On July 21, 2026, Plaintiff Curtis

Jackson filed a Second Amended Complaint against Defendants for Financial Elder

Abuse.

[Tentative] Ruling

Defendant Timothy Robbins' Demurrer to

Curtis Jackson's Second Amended Complaint is SUSTAINED WITH LEAVE TO AMEND.

REQUEST FOR JUDICIAL NOTICE

Defendant Timothy Robbins requests this

court take judicial notice of certain documents including the following

matters: (1) the Verified Complaint filed by plaintiffs Ashanti Smith and

Curtis Jackson against, inter alia, defendants Jenero Jefferson, Charity Prime

Realty, Inc., and Mindful Growth Foundation, in Los Angeles Superior Court Case

No. 19STCV24076 (Exh. A); (2) the 2019 Complaint was filed on July 10, 2019;

(3) the Grant Deed recorded on February 15, 2019 as Inst. No. 20190141156 in the Official Records of Los Angeles County, California (Exh. B); (4) the Deed of Trust recorded on February 15, 2019 as Inst. No. 20190141157 in the Official Records of Los Angeles County, California (Exh. C); (5) the Deed of Trust recorded on February 15, 2019 as Inst. No. 20190141159 in the Official Records of Los Angeles County, California (Exh. 5); (6) the Grant Deed recorded on March 15, 2019 as Inst. No. 20190233340 in the Official Records of Los Angeles County, California (Exh. E); (7) the Grant Deed recorded on May 31, 2019 as Inst. No. 20190502638 in the Official Records of Los Angeles County, California (Exh. E); and (8) the Grant Deed recorded on May 21, 2021 as Inst. No. 20210822188 in the Official Records of Los Angeles County, California (Exh. G).

The court GRANTS the request for judicial notice.

discussion

Defendant Timothy Robbins demurs to the sole cause of action in Plaintiff's Second Amended Complaint for Financial Elder Abuse. Defendant Robbins demurs to the Complaint on the grounds Plaintiffs' claims are untimely and the amended complaint fails to state facts sufficient to constitute a valid cause of action for elder abuse against Defendant Robbins.

A demurrer can be used only to challenge defects that appear on

the face of the pleading under attack or from matters outside the pleading that

are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311,

318.) “To survive a demurrer, the complaint need only allege facts sufficient

to state a cause of action; each evidentiary fact that might eventually form

part of the plaintiff’s proof need not be alleged.” (C.A. v.

William S. Hart Union High School Dist. (2012) 53 Cal.4th 861,

872.) For the purpose of testing the sufficiency of the cause of

action, the demurrer admits the truth of all material facts properly pleaded. (Aubry

v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer

“does not admit contentions, deductions or conclusions of fact or law.” (Daar

v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

Defendant argues the allegations that Plaintiff did not discover

the alleged fraud until he obtained a title report in May of 2021 is contrary

to Plaintiff’s allegations in a prior proceeding, Los Angeles Superior Court

Case No. 19STCV24076. Defendant explains at the last hearing on the demurrer to

the First Amended Complaint, prior counsel for Plaintiff notified the court

that she could not continue to represent plaintiff Jackson, because she had

been party to a lawsuit involving him and the exact same Triplex. Based on the

prior action, Defendant contends Plaintiff admits that Plaintiff “discovered”

the alleged wrong more than four years before he filed in the instant action. Specifically,

the 2019 Action alleges Mr. Jackson sued Mr. Jefferson and two of the entities

for multiple counts of elder abuse, undue influence, fraud in the inducement,

rescission of contracts, quiet title, declaratory relief, and professional

negligence. Because the statute of limitations lock beings to run once the

plaintiff had suspicion of wrongdoing, Defendant contends the financial elder

abuse claim is time barred. (See Jolly v. Eli Lilly & Co. (1988) 44

Cal. 3d 1103, 1110 holding “[u]nder the discovery rule, the statute of

limitations begins to run when the plaintiff suspects or should suspect that

her injury was caused by wrongdoing, that someone has done something wrong to

her.”)

The court notes the opposition is untimely. Counsel states the

court should consider the untimely opposition as counsel was busy concluding a

trial in another case. The court declines to consider the untimely opposition.

The opposition was filed two days before the hearing. Plaintiff is admonished

to comply with the statutes, rules and procedures governing this litigation

despite calendaring management issues.

The court finds the May 2021 discovery date alleged in the Second

Amended Complaint does not satisfy the specificity required by the demurrer

standard. (See Doe v. Roman Catholic Bishop of Sacramento (2010) 189

Cal.App.4th 1423, 1430 holding “[i]n assessing the sufficiency of the

allegations of delayed discovery, the court places the burden on the plaintiff to 'show diligence'; 'conclusory allegations will not withstand demurrer.'") Currently, the 2019 complaint's allegations demonstrate that Jackson knew—or at minimum suspected with specificity—the following facts as of July 2019: that Jefferson had presented Jackson with a title document transferring 100% of the triplex to Jefferson's entity, when Jackson believed he was adding Jefferson only as a managerial partner (Sinclair Decl., Exh. A, ¶¶77-78); that Jefferson had taken out a \$250,000 mortgage without Jackson's knowledge or consent (Sinclair Decl., Exh. A, ¶80); and that the transaction involved deceptive title transfers and encumbrances affecting the triplex's ownership and equity (Sinclair Decl., Exh. A, ¶¶100-101.) However, the current SAC alleges Jackson did not reasonably understand that defendants had structured transactions materially different from the refinance represented to him. (SAC ¶36.) While the SAC sufficiently alleges the time and manner of discovery, it does not allege with specificity the inability to discover the conduct earlier despite diligence. The SAC does not explain why a reasonable investigation in July 2019 would not have uncovered the factual basis for a claim against Robbins specifically. Plaintiff is given one more opportunity to allege facts to bring a claim against Defendant Robbins within the statute of limitations.

Based on the foregoing, the demurrer is SUSTAINED WITH LEAVE TO

AMEND.